



File No.: EXP202207990

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 13, 2022, a complaint was filed with the Spanish Agency for Data Protection, with entry registration number REGAGE22e00024250633, directed against REPSOL

COMERCIALIZADORA DE ELECTRICIDAD Y GAS S.L.U. (hereinafter, the complained party).

SECOND: The complaining party alleged in their complaint that the complained party had carried out a change of ownership in a contract for the supply of electricity and in a contract for the supply of gas in their name, using their personal data without their consent, at a supply point. After contacting the complained party, they were informed that the said contracting was due to an error from a "data crossover" and proceeded to cancel the contracts.

THIRD: In accordance with the preliminary mechanism for the admission of complaints filed with the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint was forwarded to the complained party for analysis and response within one month, which was verified by a letter dated August 22, 2022, in which it was stated that they were aware that, on January 13, 2022, a third party had requested a change of ownership of the electricity and gas supplies. Due to a specific error, this modification was made in the customer file of the complaining party as there was almost identical correspondence of names.

FOURTH: On August 30, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the non-admission of the complaint for processing.

FIFTH: On September 7, 2022, the complaining party filed an optional appeal for reconsideration, expressing their disagreement with the contested resolution.

SIXTH: On April 11, 2023, after analyzing the appeal, a resolution was issued by the Director of the Spanish Agency for Data Protection agreeing to its acceptance and the admission of the complaint for processing in accordance with the provisions of Article 65 of the LOPDGDD.

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SEVENTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict

them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD states the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

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III

Expiration of Proceedings

In relation to the preliminary proceedings, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the RGPD and the LOPDGDD, in its article 122.4 states that "The expiration of the term without a decision being issued and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings."

According to the provisions of the transcribed articles, the preliminary proceedings must be understood as expired if, after more than twelve months counted from the date of admission of the complaint for processing, no decision has been issued and notified to initiate sanctioning proceedings.

In the present case, the computation of the twelve-month maximum duration of the preliminary proceedings began on August 30, 2022, therefore they must be declared expired.

IV

Initiation of New Investigative Proceedings

On the other hand, article 95.3 of the aforementioned LPACAP determines that:

"Expiration will not, by itself, produce the prescription of the actions of the individual or the Administration, but expired proceedings will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed."

In this regard, the National Court, in its ruling of July 10, 2013 (JUR 2013\259250), considers that "the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not constitute any obstacle for that entity to initiate or restart other preliminary investigative proceedings on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed."

In the present proceedings, the investigation has proven to be a process of enormous complexity both from a technical point of view and due to the volume of documentation that must be analyzed and studied. Furthermore, new lines of investigation have emerged that must be evaluated, therefore, the initiated investigation must be completed with new complementary actions.

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Consequently, since the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative proceedings.

Therefore, in accordance with the aforementioned, the director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to REPSOL COMERCIALIZADORA DE ELECTRICIDAD Y GAS S.L.U. and to the complaining party.

Against this resolution, which concludes the administrative route as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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